

Court No. - 91

Case :- APPLICATION U/S 482 No. - 25399 of 2021

Applicant :- Janardan Singh

Opposite Party :- State Of U.P. And 3 Others

Counsel for Applicant :- G.K. Srivastava

Counsel for Opposite Party :- G.A.

Hon'ble Syed Aftab Husain Rizvi,J.

Heard learned counsel for the applicant, Sri Narendra Kumar Tiwari, learned counsel appearing for U.P. Power Corporation and learned AGA for the State.

This criminal misc. application U/s 482 Cr.P.C. is filed to quash the charge-sheet dated 28.01.2019 submitted in case no.340 of 2019 (State vs. Janardan Singh) arising out of case crime no.0370 of 2018, under section 135 of Indian Electricity (Amendment) Act, 2003, P.S. Charwa, District Kaushambi as well as cognizance order dated 04.09.2019 passed by Additional Sessions Judge, Court No.4, Kaushambi pending in the court of Additional Sessions Judge, court no.2 Kaushambi.

On 22.12.2018, an FIR was lodged against the applicant and some other persons regarding theft of electricity alleging that applicant has connected the two core black cable with LT line by passing the meter and in this way he was indulged in theft of electricity. After investigation, charge-sheet has been submitted.

The submission of the learned counsel for the applicant is that the applicant is regularly paying the electricity bills, the meter of the applicant's house was burnt on 20.12.2018. The applicant gave a written application to the opposite party no.2 on 20.12.2018. The new meter was installed on 22.12.2018. The Police Station- Charwa reached the house of the applicant and said that the first information report has been lodged by electricity department under Section 135 of the Indian Electricity (Amendment) Act against him. On 22.12.2018, an inspection team of power corporation checked the premises of the applicant and found no incriminating material from the premises. They have not given any seizure report. On 22.12.2018 when the checking was conducted, the opposite party no.2 issued provisional assessment dated 18.01.2019 raising demand of Rs.1,38,775/-. The Investigating Officer has failed to conduct the investigation in a fair manner and has submitted charge-sheet arbitrarily and malafidly. Learned trial court has taken cognizance on it. It is also contended that recovery certificate was issued on 31.05.2019 for a demand of

Rs.1,38,785. It is further contended that inspection team did not serve any copy of the checking report dated 22.12.2018 to the applicant nor pasted it on the wall of the premises as provided under clause 8.1 of U.P. Electricity Supply Code, 2005. The opposite party no.2 failed to follow the procedure prescribed under the 126 of Electricity Act. The entire proceeding is illegal and erroneous and not sustainable.

Learned counsel for the opposite party submitted that electricity theft was detected from the house of the applicant at the time of checking and on the basis FIR was lodged. Charge-sheet has been submitted. There is no sufficient ground to quash the charge-sheet.

The allegations of the FIR, discloses a cognizable offence. On the basis of evidence collected during investigation, finding sufficient evidence, the Investigating Officer has submitted the charge-sheet. Learned trial court being satisfied with it has taken cognizance on it. All the grounds as assailed by the learned counsel for the applicant are factual and is matter of trial and it cannot be considered at this stage in proceeding U/s 482 Cr.P.C.

At this Stage only prima-facie case is to be seen as propounded by the Supreme Court in the case of ***Zandu Pharmaceutical Works Ltd. Vs. Mohd. Saraful Haq and another (Para-10) 2005 SCC (Cr.) 283.***

From the aforesaid analysis, it is clear that this application U/s 482 Cr.P.C. lack merits and is hereby ***dismissed***.

Order Date :- 7.3.2022

C. MANI